

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

-----X
STEPHANIE DORCEANT and
NANDI ALLMAN,

Plaintiffs,

COMPLAINT

JURY TRIAL DEMANDED

-against-

THE CITY OF NEW YORK, a municipal corporation;
POLICE OFFICER SALVATOR AQUINO
(Shield Number 2958), in his individual and official
capacities; POLICE OFFICERS JOHN DOE #1-5, in
their individual and official capacities,

Defendants.
-----X

Plaintiffs, Stephanie Dorceant and Nandi Allman, by their attorneys, Moore Zeman
Womble, LLP, allege for their complaint against the defendants as follows:

PRELIMINARY STATEMENT

1. Plaintiffs, Stephanie Dorceant and Nandi Allman, bring this action for compensatory damages, punitive damages, and attorney's fees pursuant to 42 U.S.C. §§ 1981, 1983 and 1988, and by the Fourth Amendment, Fifth Amendment, Equal Protection and Due Process Clauses of the Fourteenth Amendment of the United States Constitution, and for rights secured under the laws and Constitution of the State of New York. Plaintiff Dorceant also sues in traditional tort pursuant to pendant state claims. Plaintiffs were deprived of their constitutional and common law rights when the individual defendants utilized excessive force, committed unwarranted and malicious assaults and batteries on plaintiffs, unlawfully confined plaintiffs, and caused the unjustifiable arrests and prosecution of plaintiffs. Plaintiffs seek

damages, compensatory and punitive, affirmative and equitable relief, and award of costs and attorney's fees and such other and further relief as this court deems equitable and just.

JURISDICTION

2. This action is brought pursuant to 42 U.S.C. §§ 1981, 1983 and 1988 and the Fourth and Fourteenth Amendments to the United States Constitution.

3. Jurisdiction is conferred upon this Court by 28 U.S.C. §§ 1331, 1343, 1343(a)(3) and (4), and 1367(a) this being an action seeking redress for the violations of the Plaintiffs' constitutional and civil rights. The amount of damages in controversy is in excess of fifty thousand dollars (\$50,000.00), exclusive of interests and costs.

4. Plaintiffs further invoke this Court's supplemental jurisdiction, pursuant to 28 U.S.C. § 1367(a), over any and all state constitutional or common law claims that are so related to the claims within the original jurisdiction of this Court that they form part of the same controversy.

VENUE

5. Venue is properly laid in the Eastern District of New York under 28 U.S.C. § 1391(b)(2), in that this is the District in which the events or omissions underlying the claims arose.

JURY DEMAND

6. Plaintiffs respectfully demand a trial by jury of all issues in this matter pursuant to Fed. R. Civ. P. 38(b).

PARTIES

7. The Plaintiffs are African-American females and were at all relevant times citizens of the City and State of New York.

8. Defendant, the City of New York, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

9. Defendant, the City of New York, maintains the New York City Police Department, a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, the City of New York.

10. At all times hereinafter mentioned, the individually named defendant, Police Officer Salvator Aquino (Shield No. 2958) and Police Officers John Doe #1-5, were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

11. At all times hereinafter mentioned, the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

12. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant City of New York.

13. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant City of New York.

FACTS

14. On July 11, 2015, at approximately 2:05 a.m., plaintiffs were on a public sidewalk in the vicinity of Brooklyn Avenue and Avenue J, Brooklyn, New York returning to their residence.

15. All of a sudden, Police Officer Salvator Aquino, not in his police uniform, bumped

into Ms. Stephanie Dorceant from behind.

16. When Ms. Dorceant asked Police Officer Aquino whether he was “alright” he responded in sum and substance “mind your own business you fucking dyke.”

17. Ms. Dorceant asked Police Officer Aquino not to speak to her in that disrespectful and offensive manner.

18. Police Officer Aquino then attacked Ms. Dorceant; he repeatedly punched her in the face, ripped her shirt and choked her. Ms. Dorceant suffered bruising and swelling to her face and neck, burst blood vessels in her eyes, abrasions and contusions to her arms and legs and pain to her body, requiring medical attention.

19. Ms. Nandi Allman, witness to the entire interaction, tried to stop Police Officer Aquino from beating Plaintiff Dorceant, but since Defendant Officer Aquino is twice her size, she was unable to prevent or stop the attack.

20. Police Officer Aquino continued his assault on Ms. Dorceant as she grew increasingly fearful for her life.

21. Defendant Police Officers John Doe 1-5 from the 63rd Precinct approached on foot to the location of the attack.

22. Despite the disparity in size and clear injuries to Plaintiff DORceant, the Defendant Officers John Doe 1-5 further victimized plaintiffs by forcefully grabbing plaintiffs, forcing them both to the ground, and cuffing them, while pressing knees into plaintiffs’ backs causing injury.

23. One of Defendant police officers then took out handcuffs, grabbed Plaintiff Allman and placed the handcuffs on her wrists.

24. Another of Defendant police officers then took out handcuffs, grabbed Plaintiff Dorceant and placed the handcuffs on her wrists.

25. As a result of Defendant police officers' actions, Plaintiff Dorceant suffered serious physical pain, discomfort and physical injury. Although Plaintiffs Dorceant and Allman notified defendant police officers that they were in severe pain, Defendant police officers refused to obtain any medical care or assistance for Plaintiff Dorceant or Allman.

26. Plaintiffs Dorceant and Allman were then transported to the 63rd precinct located at 1844 Brooklyn Avenue, Brooklyn, New York.

27. After a period of time, Ms. Allman's hands were uncuffed and she was released from the 63rd Precinct with no criminal charges filed against her.

28. Ms. Dorceant, having had her shirt ripped off and still in serious pain, was then brought to the 63rd Precinct where she was charged with Penal Law Section 120.05(3), Assault in the Second Degree; Penal Law Section 110/120.05(1), Attempted Assault in the Second Degree; Penal Law Section 120.00(1), Assault in the Third Degree; Penal Law Section 205.30, Resisting Arrest; Penal Law Section 120.15, Menacing in the Third Degree; and Penal Law Section 240.26(1), Harassment in the Second Degree.

29. Ms. Dorceant, still in serious pain, was brought to Kings County Hospital for evaluation and treatment.

30. After being treated, Ms. Dorceant was transferred to Central Bookings in the Criminal Courthouse in Downtown Brooklyn which were filthy and infested with pests. The toilets were covered in feces, urine and other types of human discharge and there were no beds or cots for plaintiff and other detainees to sleep on.

31. At the arraignment, where Ms. Dorceant was falsely accused of having provoked the attack, bail was set and she was then transferred to Riker's Island.

32. Upon bail being posted, Ms. Dorceant went to Methodist Hospital in Brooklyn

where her injuries were further treated.

33. On November 20, 2015, Ms. Dorceant testified on her own behalf and was subjected to cross examination in front of a Grand Jury regarding the felony and misdemeanor charges against her.

34. On November 24th, that same Grand Jury dismissed all criminal charges against Ms. Dorceant.

35. As a result, Plaintiff Dorceant's criminal case was dismissed and sealed.

36. Within ninety days after the claims alleged in this Complaint arose, a written notice of claim was served upon defendants at the New York City Law Department.

37. This action has been commenced within one year and ninety days after the happening of the events upon which the claims are based.

38. Ms. Dorceant and Ms. Allman suffered severe damage as a result of defendants' actions. Plaintiffs were deprived of their liberty, suffered emotional distress, mental anguish, fear, pain, bodily injury, anxiety, embarrassment, humiliation, damage to their reputations, and deprivation of their constitutional rights.

FEDERAL CLAIMS

FIRST CAUSE OF ACTION

42 U.S.C. §§1981 and 1983—Deprivation of Rights
(Against the Individual Officer Defendants)

39. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered “1” through “38” with the same force and effect as if fully set forth herein.

40. All of the aforementioned acts of defendants, their agents, servants and employees were carried out under the color of state law.

41. All of the aforementioned acts deprived plaintiffs STEPHANIE DORCEANT and

NANDI ALLMAN, members of a racial minority and members of a protected gender class, of the rights, privileges and immunities guaranteed to the citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. §§1981 and 1983.

42. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, with the entire actual and/or apparent authority attendant thereto, and with the intent to discriminate on the basis of race, gender or sexual orientation.

43. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the CITY OF NEW YORK and the New York City Police Department, all under the supervision of ranking officers of said department.

44. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

45. Defendants violated the Fourth and Fourteenth Amendments because they stopped and detained plaintiffs without reasonable suspicion.

46. As a result, plaintiffs STEPHANIE DORCEANT and NANDI ALLMAN sustained the damages alleged herein.

SECOND CAUSE OF ACTION

*42 U.S.C. § 1983 -Fourth and Fourteenth Amendment Violations for Unlawful Stop
(Against the Individual Officer Defendants)*

47. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered “1” through “38” with the same force and effect as if fully set forth herein.

48. Defendants violated the Fourth and Fourteenth Amendment because they stopped plaintiffs without reasonable suspicion. Plaintiff Dorceant was unlawfully attacked, punched, tackled, choked, stopped, and assaulted without probable cause or reasonable suspicion.

49. As a result, Plaintiff Dorceant sustained the damages alleged herein.

50. Plaintiff Allman was handcuffed without probable cause or reasonable suspicion.

51. By virtue of the foregoing, the Defendant police officers deprived Plaintiffs Dorceant and Allman of their Fourth Amendment rights under the United States Constitution to be free from unlawful stop and are liable to plaintiffs under 42 U.S.C. §1983.

THIRD CAUSE OF ACTION

*42 U.S.C. § 1983 -Fourth and Fourteenth Amendment Violations for False Arrest
(Against the Individual Officer Defendants)*

52. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered “1” through “38” with the same force and effect as if fully set forth herein.

53. As a result of Defendant police officers’ aforementioned conduct, Plaintiffs Dorceant and Allman were subjected to an illegal, improper, and false arrest by the defendants. Plaintiff Dorceant was taken into custody and caused to be falsely imprisoned, detained, confined, incarcerated and prosecuted by the defendants in criminal proceedings. Plaintiff Allman was taken into custody and caused to be falsely imprisoned, detained, confined, and incarcerated. In the above-mentioned actions, Defendant police officers acted intentionally, willfully, with malice, and without probable cause, privilege or consent.

54. Plaintiffs Dorceant and Allman were conscious of their confinement.

55. By virtue of the foregoing, the Defendant police officers deprived Plaintiffs Dorceant and Allman of their Fourth Amendment rights under the United States Constitution to be free from false arrest and are liable to plaintiff under 42 U.S.C. §1983.

FOURTH CAUSE OF ACTION

42 U.S.C. § 1983 - Fourth Amendment Violation for Excessive Force
(Against the Individual Officer Defendants)

56. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered “1” through “38” with the same force and effect as if fully set forth herein.

57. While in the course of their duties and while acting under color of law, Defendant police officers affected a seizure and arrest of Plaintiffs Dorceant and Allman by intentionally using excessive physical force against plaintiffs, including but not limited to striking Plaintiff Dorceant repeatedly about her head and body with fists, choking Plaintiff Dorceant, ripping her clothes and slamming Plaintiff Dorceant into the ground and piling on top of her.

58. The physical force the Defendant police officers used on Plaintiff Dorceant was objectively unreasonable and wholly unnecessary.

59. The Defendant police officers use of excessive physical force caused injuries, including but not limited to, severe pain to the plaintiff's head and body, bruising to her face and body, cuts and abrasion to numerous areas of her body, burst blood vessels in her eyes and fear for her life.

60. By virtue of the foregoing, the Defendant police officers deprived Plaintiffs Dorceant and Allman of their Fourth Amendment rights under the United States Constitution to be free from excessive force and are liable to plaintiff under 42 U.S.C. §1983.

FIFTH CAUSE OF ACTION

42 U.S.C. § 1983- Fourth Amendment Violations for Failure to Intervene
(Against the Individual Officer Defendants)

61. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered “1” through “38” with the same force and effect as if fully set forth herein.

62. Defendant police officers who did not participate in Plaintiffs Dorceant and

Allman's arrests, but observed the unlawful actions alleged herein, had an opportunity to prevent such conduct, and failed to intervene.

63. By virtue of the foregoing, the Defendant police officers deprived Plaintiffs Dorceant and Allman of their Fourth Amendment rights under the United States Constitution to be free from unreasonable seizure and excessive force are liable to plaintiff under 42 U.S.C. §1983.

SIXTH CAUSE OF ACTION

42 U.S.C. § 1983-Fifth Amendment Violation of Due Process
(Against Defendant City)

64. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered "1" through "38" with the same force and effect as if fully set forth herein.

65. While in the course of their duties and while acting under color of law, Defendant Officers violated Plaintiff Dorceant and Allman's guaranteed right of due process under the Fifth Amendment of the United States Constitution when they falsely arrested, detained and searched Plaintiffs Dorceant and Allman as described herein.

66. During all times relevant to this action, the New York City Police Department developed and maintained customs and practices exhibiting deliberate indifference to the constitutional rights of people in the City of New York. These customs and practices caused the violation of Plaintiff Dorceant and Allman's due process rights.

67. As a direct and proximate result of this unlawful conduct, Plaintiffs Dorceant and Allman sustained the damages herein alleged.

SEVENTH CAUSE OF ACTION

Municipal Liability
(Against Defendant City under 42 U.S.C. §1983)

68. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered "1" through "38" with the same force and effect as if fully set forth herein.

69. The widely held assumption is that civil rights lawsuits deter police misconduct. “The purpose of § 1983 is to deter state actors from using the badge of their authority to deprive individuals of their federally guaranteed rights and to provide relief to victims if such deterrence fails.” Wyatt v. Cole, 504 U.S. 158, 161, (1992) citing Carey v. Piphus, 435 U.S. 247, 254-257, (1978). “As far as we know, civil liability is an effective deterrent [to civil rights violations], as we have assumed it is in other contexts.” See Hudson v. Michigan 547 U.S. 586, 598 (2006) citing Correctional Services Corp. v. Malesko, 534 U.S. 61, 70 (2001) and Nix v. Williams, 467 U.S. 431, 446, (1984). “It is almost axiomatic that the threat of damages has a deterrent effect (citation omitted) surely particularly so when the individual official faces personal financial liability.” Carlson v. Green, 446 U.S. 14, 21, (1980), citing Imbler v. Pachtman, 424 U.S. 409, 442, and footnote 6 (1976).

70. However, the City of New York has insulated NYPD officers like Police Officer Salvator Aquino and Police Officers John Doe #1-5 from accountability for civil rights lawsuits by indemnifying officers who violate the constitutional rights of citizens, and, as a result, is preventing civil rights lawsuits from having any deterrent value to the City, the NYPD or its officers. Civil rights lawsuits against police officers have no impact on the officers’ careers, regardless of the expense to the City of the officers’ lawsuit liability, even after multiple lawsuits.

71. Nevertheless, the City has repeatedly resisted attempts to catalog even basic information gleaned from civil rights lawsuits that could improve training, leadership, supervision, and discipline in the NYPD. The City’s deliberate indifference towards the contents of civil rights litigation, individual officers repeatedly named in lawsuits, incidents repeatedly occurring in the same division, and patterns of misconduct that arise in civil rights litigation has caused the constitutional violations of excessive force and false arrest suffered by plaintiffs.

72. Further, the City has no procedure to notify individual officers or their supervisors of unfavorable judicial review of their conduct or to calculate the total liability of an individual officer or of a precinct. Without this notification, improper search and seizure practices and incredible testimony go uncorrected, problematic supervision or leadership at the precinct level goes ignored, and repeated misconduct by individual officers goes unaccounted for. Even occasional judicial findings that officers have testified incredibly are not reported routinely to the police department or any oversight agencies.

73. All of the aforementioned has created a climate where police officers and detectives lie to prosecutors and in police paperwork and charging instruments, and testify falsely, with no fear of reprisal. "Informal inquiry by the court and among the judges of this court, as well as knowledge of cases in other federal and state courts, has revealed anecdotal evidence of repeated, widespread falsification by arresting police officers of the New York City Police Department. Despite numerous inquiries by commissions and strong reported efforts by the present administration-through selection of candidates for the police force stressing academic and other qualifications, serious training to avoid constitutional violations, and strong disciplinary action within the department-there is some evidence of an attitude among officers that is sufficiently widespread to constitute a custom or policy by the city approving illegal conduct of the kind now charged." See Colon v. City of New York, et al, 2009 WL 4263362 (E.D.N.Y.) (Weinstein, J.).

74. In Floyd v. City of New York, 08-cv-01034-SAS-HBP, Judge Scheindlin found that the City acted with "deliberate indifference toward the NYPD's practice of making unconstitutional stops and conducting unconstitutional frisks" and adopted "a policy of indirect racial profiling by targeting racially defined groups for stops based on local crime suspect data." (Opinion and Order, dated August 12, 2013, P.13).

75. The City is aware that all of the aforementioned has resulted in violations of citizens' constitutional rights. Despite such notice, the City has failed to take corrective action. This failure and these policies caused the officers in the present case to violate plaintiffs' civil rights, without fear of reprisal.

76. Plaintiffs have been damaged as a result of the deliberate indifference of the Defendant City and deprived of federal protected rights, including, but not limited to, the right:

- a. Not to be deprived of liberty without due process of law;
- b. To be free from false arrest;
- c. To be free from excessive force;
- d. To be free from malicious abuse of process;
- e. To be free from retaliation for the exercise of free expression;
- f. To be free from failure to intervene.

77. The foregoing acts and conduct of defendants were a direct and proximate cause of injury and damage to plaintiffs and violated the common law rights guaranteed to them by the Constitution of the United States of America.

EIGHTH CAUSE OF ACTION
(Malicious Prosecution under 42 U.S.C. §1983)

78. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered "1" through "38" with the same force and effect as if fully set forth herein.

79. By their conduct, as described herein, and acting under color of state law, defendants are liable to plaintiff STEPHANIE DORCEANT under 42 U.S.C. §1983 for the violation of her constitutional right to be free from malicious prosecution under the Fourth and Fourteenth Amendments to the United States Constitution.

80. Defendants' unlawful actions were done willfully, knowingly, with malice and with the specific intent to deprive plaintiff of her constitutional rights. The prosecution by defendants of plaintiff constituted malicious prosecution in that there was no basis for the plaintiff's arrest, yet defendants continued with the prosecution, which was resolved in plaintiff's favor.

81. As a direct and proximate result of the misconduct and abuse of authority stated above, plaintiff sustained the damages alleged herein.

NINTH CAUSE OF ACTION

(Malicious Abuse of Process under 42 U.S.C. §1983)

82. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered "1" through "38" with the same force and effect as if fully set forth herein.

83. Defendants arrested both Plaintiff Dorceant and Allman and chose to process and prosecute Ms. Dorceant in Brooklyn Criminal Court for the collateral objective of covering up their acts of brutality and abuse of authority during the arrests of the Plaintiffs.

84. Defendants thereby caused Plaintiffs Dorceant and Allman to be deprived of their right to be free from malicious abuse of process.

Supplemental State Law Claims

85. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered "1" through "84" with the same force and effect as if fully set forth herein.

86. Within ninety (90) days after the claim herein accrued, plaintiff DORCEANT duly served upon, presented to and filed with the CITY OF NEW YORK, a Notice of Claim setting forth all facts and information required under the General Municipal Law 50-e.

87. The CITY OF NEW YORK has wholly neglected or refused to make an adjustment

or payment thereof and more than thirty (30) days have elapsed since the presentation of such claim as aforesaid.

88. This action was commenced within one (1) year and ninety (90) days after the cause of action herein accrued.

89. Plaintiffs have complied with all conditions precedent to maintaining the instant action.

90. This action falls within one or more of the exceptions as outlined in C.P.L.R. 1602.

TENTH CAUSE OF ACTION

Respondeat Superior
(Against the City of New York)

91. Plaintiffs repeat, reiterate, and reallege paragraphs “1” through “90” as if fully set forth herein.

92. The Individual Defendant police officers were employees of the City of New York at the time of the incidents alleged herein and each was acting at all relevant times within the scope of his or her employment with the City.

93. The City is therefore vicariously liable for the tortious acts as described and alleged herein of the Individual Defendant police officers under the common law doctrine of respondeat superior.

94. As a result of the foregoing, Plaintiffs Stephanie Dorceant and Nandi Allman are entitled to compensatory damages in an amount to be determined by a jury and are further entitled to punitive damages against the individual defendants in an amount to be determined by a jury.

ELEVENTH CAUSE OF ACTION

(Assault under the laws of the State of New York)

95. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in

paragraphs numbered “1” through “94” with the same force and effect as if fully set forth herein.

96. As a result of the foregoing, plaintiff STEPHANIE DORCEANT was placed in apprehension of imminent harmful and offensive bodily harm.

97. As a result of defendants’ conduct, plaintiff STEPHANIE DORCEANT has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment, and humiliation.

TWELFTH CAUSE OF ACTION

(Battery under the laws of the State of New York)

98. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered “1” through “97” with the same force and effect as if fully set forth herein.

99. Defendants made offensive contact with plaintiff STEPHANIE DORCEANT without privilege or consent.

100. As a result of defendants’ conduct, plaintiff STEPHANIE DORCEANT has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment, and humiliation.

THIRTEENTH CAUSE OF ACTION

(Negligent Infliction of Emotional Distress)

101. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered “1” through “100” with the same force and effect as if fully set forth herein.

102. Having taken custody of plaintiff DORCEANT, who was helpless to adequately aid or protect herself, defendants assumed a duty to assure her well-being during custody. Defendants breached that duty.

103. The aforementioned conduct was committed by defendants while acting within

the scope of their employment by defendant CITY OF NEW YORK.

104. The aforementioned conduct was committed by the defendants while acting in furtherance of their employment by defendant CITY OF NEW YORK.

105. As a result of the aforementioned conduct, plaintiff DORCEANT was injured.

FOURTEENTH CAUSE OF ACTION

(False Arrest/False Imprisonment under the laws of the State of New York)

106. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered “1” through “105” with the same force and effect as if fully set forth herein.

107. Defendants arrested and/or imprisoned plaintiffs STEPHANIE DORCEANT and NANDI ALLMAN without probable cause, privilege or any other justification.

108. Plaintiffs were detained or otherwise imprisoned due to the defendants’ unlawful conduct, and both plaintiffs STEPHANIE DORCEANT and NANDI ALLMAN were subjected to physical restraints.

109. As a result of the aforementioned conduct, plaintiffs STEPHANIE DORCEANT and NANDI ALLMAN were unlawfully imprisoned in violation of the laws of the State of New York.

110. As a result of the aforementioned conduct, plaintiffs STEPHANIE DORCEANT and NANDI ALLMAN were injured.

FIFTEENTH CAUSE OF ACTION

(Malicious Abuse of Process under the laws of the State of New York)

111. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered “1” through “110” with the same force and effect as if fully set forth herein.

112. Plaintiff STEPHANIE DORCEANT was arrested and prosecuted in Brooklyn Criminal Court for the collateral objective of covering up the defendants' acts of brutality and abuse of authority.

113. As a result of the foregoing, plaintiff STEPHANIE DORCEANT is entitled to compensatory damages in an amount fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursement of this action.

SIXTEENTH CAUSE OF ACTION

(Malicious Prosecution under the laws of the State of New York)

114. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered "1" through "113" with the same force and effect as if fully set forth herein.

115. By their conduct, as described herein, defendants are liable to plaintiff STEPHANIE DORCEANT for having committed malicious prosecution under the laws of the State of New York.

116. Defendants maliciously commenced a criminal proceeding against plaintiff STEPHANIE DORCEANT, charging her with Assault in the Second Degree, Attempted Assault in the Second Degree, Assault in the Third Degree, Resisting Arrest, Menacing in the Third Degree, and Harassment in the Second Degree. Defendants falsely and without probable cause charged plaintiff STEPHANIE DORCEANT with violations of the laws of the State of New York.

117. The commencement and continuation of the criminal proceedings against plaintiff STEPHANIE DORCEANT was malicious and without probable cause.

118. All charges against plaintiff STEPHANIE DORCEANT were dismissed.

119. Defendants, their officers, agents, servants and employees were responsible for the malicious prosecution of plaintiff STEPHANIE DORCEANT. Defendant City of New York, as an employer of the individual defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

120. As a direct and proximate result of the misconduct and abuse of authority stated above, plaintiff STEPHANIE DORCEANT sustained the damages alleged herein.

SEVENTEENTH CAUSE OF ACTION

(Negligent Screening, Hiring, and Retention under the laws of the State of New York)

121. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered “1” through “120” with the same force and effect as if fully set forth herein.

122. Upon information and belief, defendant CITY OF NEW YORK failed to use reasonable care in screening, hiring and retention of the aforesaid defendants who conducted and participated in the wrongful conduct described herein.

123. Defendant CITY OF NEW YORK knew, or should have known in the exercise of reasonable care, the propensities of the individual defendants to engage in the wrongful conduct heretofore alleged in this Complaint.

EIGHTEENTH CAUSE OF ACTION

(Negligent Training and Supervision under the laws of the State of New York)

124. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered “1” through “123” with the same force and effect as if fully set forth herein.

125. Upon information and belief, the defendant CITY OF NEW YORK failed to use

reasonable care in training and supervision of the aforesaid defendants who conducted and participated in the wrongful conduct described herein.

NINETEENTH CAUSE OF ACTION

(Negligence under the laws of the State of New York)

126. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered “1” through “125” with the same force and effect as if fully set forth herein.

127. Plaintiffs’ injuries herein were caused by the carelessness, recklessness and negligence of the defendant CITY OF NEW YORK and its employees and agents, who were on duty and acting in the scope of their employment when they engaged in the wrongful conduct described herein.

TWENTIETH CAUSE OF ACTION

(Bias-Based Profiling under the laws of the City of New York)

128. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered “1” through “127” with the same force and effect as if fully set forth herein.

129. In initiating law enforcement action against Ms. Dorceant and Ms. Allman based on their actual and/or perceived sexual orientation, gender, race and color, rather than Ms. Dorceant and Ms. Allman’s behavior or other information linking them to suspected unlawful activity the defendant officers engaged in bias-based profiling in violation of Section 14-151(c)(i) and (ii) of the Administrative Code of the City of New York.

130. Accordingly, plaintiffs are entitled to injunctive and declaratory relief, along with reasonable attorney’s fees and costs.

131. As a result of the foregoing, plaintiffs STEPHANIE DORCEANT and

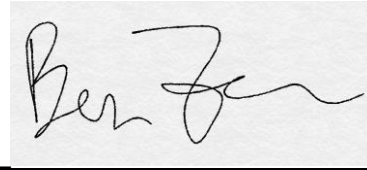
NANDI ALLMAN are entitled to compensatory damages in an amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury.

WHEREFORE, plaintiffs demand a jury trial and the following relief jointly and severally against the defendants:

- a. Full and fair compensatory damages in an amount to be determined by a jury;
- b. Punitive damages in an amount to be determined by a jury;
- c. Costs, interest and attorney's fees, pursuant to 42 U.S.C. §1988; and
- d. Such other and further relief as this Court may deem just and proper, including injunctive and declaratory relief.

Dated: New York, New York
December 14, 2015

By: Benjamin Zeman

A handwritten signature in black ink, appearing to read "Ben Zeman", is written over a light gray rectangular background. Below the signature is a solid black horizontal line.

Benjamin Zeman
Attorney for Plaintiffs
Moore Zeman Womble, LLP
66 Willoughby St.
Brooklyn, New York 11201
(T) (718) 514-9100
(F) (917) 210-3700
zeman@brooklynattorney.nyc

CIVIL COVER SHEET

The JS 44 civil cover sheet and the information contained herein neither replace nor supplement the filing and service of pleadings or other papers as required by law, except as provided by local rules of court. This form, approved by the Judicial Conference of the United States in September 1974, is required for the use of the Clerk of Court for the purpose of initiating the civil docket sheet. (SEE INSTRUCTIONS ON NEXT PAGE OF THIS FORM.)

I. (a) PLAINTIFFS

Stephanie Dorceant and Nandi Allman

(b) County of Residence of First Listed Plaintiff Kings
(EXCEPT IN U.S. PLAINTIFF CASES)

(c) Attorneys (Firm Name, Address, and Telephone Number)
Moore Zeman Womble, LLP
66 Willoughby Street
Brooklyn, NY 11201

DEFENDANTS

City of New York, et al.

County of Residence of First Listed Defendant New York
(IN U.S. PLAINTIFF CASES ONLY)

NOTE: IN LAND CONDEMNATION CASES, USE THE LOCATION OF THE TRACT OF LAND INVOLVED.

Attorneys (If Known)
New York City Law Department
100 Church Street
New York, NY 10007

II. BASIS OF JURISDICTION (Place an "X" in One Box Only)

- ☐ 1 U.S. Government Plaintiff
- ☒ 3 Federal Question (U.S. Government Not a Party)
- ☐ 2 U.S. Government Defendant
- ☐ 4 Diversity (Indicate Citizenship of Parties in Item III)

III. CITIZENSHIP OF PRINCIPAL PARTIES (Place an "X" in One Box for Plaintiff and One Box for Defendant)

- | | PTF | DEF | | PTF | DEF |
|---|----------------------------|----------------------------|---|----------------------------|----------------------------|
| Citizen of This State | ☐ 1 | ☐ 1 | Incorporated or Principal Place of Business In This State | ☐ 4 | ☐ 4 |
| Citizen of Another State | ☐ 2 | ☐ 2 | Incorporated and Principal Place of Business In Another State | ☐ 5 | ☐ 5 |
| Citizen or Subject of a Foreign Country | ☐ 3 | ☐ 3 | Foreign Nation | ☐ 6 | ☐ 6 |

IV. NATURE OF SUIT (Place an "X" in One Box Only)

CONTRACT	TORTS	FORFEITURE/PENALTY	BANKRUPTCY	OTHER STATUTES	
☐ 110 Insurance ☐ 120 Marine ☐ 130 Miller Act ☐ 140 Negotiable Instrument ☐ 150 Recovery of Overpayment & Enforcement of Judgment ☐ 151 Medicare Act ☐ 152 Recovery of Defaulted Student Loans (Excludes Veterans) ☐ 153 Recovery of Overpayment of Veteran's Benefits ☐ 160 Stockholders' Suits ☐ 190 Other Contract ☐ 195 Contract Product Liability ☐ 196 Franchise	PERSONAL INJURY ☐ 310 Airplane ☐ 315 Airplane Product Liability ☐ 320 Assault, Libel & Slander ☐ 330 Federal Employers' Liability ☐ 340 Marine ☐ 345 Marine Product Liability ☐ 350 Motor Vehicle ☐ 355 Motor Vehicle Product Liability ☐ 360 Other Personal Injury ☐ 362 Personal Injury - Medical Malpractice	PERSONAL INJURY ☐ 365 Personal Injury - Product Liability ☐ 367 Health Care/Pharmaceutical Personal Injury Product Liability ☐ 368 Asbestos Personal Injury Product Liability PERSONAL PROPERTY ☐ 370 Other Fraud ☐ 371 Truth in Lending ☐ 380 Other Personal Property Damage ☐ 385 Property Damage Product Liability	☐ 625 Drug Related Seizure of Property 21 USC 881 ☐ 690 Other LABOR ☐ 710 Fair Labor Standards Act ☐ 720 Labor/Management Relations ☐ 740 Railway Labor Act ☐ 751 Family and Medical Leave Act ☐ 790 Other Labor Litigation ☐ 791 Employee Retirement Income Security Act IMMIGRATION ☐ 462 Naturalization Application ☐ 465 Other Immigration Actions	☐ 422 Appeal 28 USC 158 ☐ 423 Withdrawal 28 USC 157 PROPERTY RIGHTS ☐ 820 Copyrights ☐ 830 Patent ☐ 840 Trademark SOCIAL SECURITY ☐ 861 HIA (1395ff) ☐ 862 Black Lung (923) ☐ 863 DIWC/DIWW (405(g)) ☐ 864 SSID Title XVI ☐ 865 RSI (405(g)) FEDERAL TAX SUITS ☐ 870 Taxes (U.S. Plaintiff or Defendant) ☐ 871 IRS—Third Party 26 USC 7609	☐ 375 False Claims Act ☐ 400 State Reapportionment ☐ 410 Antitrust ☐ 430 Banks and Banking ☐ 450 Commerce ☐ 460 Deportation ☐ 470 Racketeer Influenced and Corrupt Organizations ☐ 480 Consumer Credit ☐ 490 Cable/Sat TV ☐ 850 Securities/Commodities/Exchange ☐ 890 Other Statutory Actions ☐ 891 Agricultural Acts ☐ 893 Environmental Matters ☐ 895 Freedom of Information Act ☐ 896 Arbitration ☐ 899 Administrative Procedure Act/Review or Appeal of Agency Decision ☐ 950 Constitutionality of State Statutes
REAL PROPERTY ☐ 210 Land Condemnation ☐ 220 Foreclosure ☐ 230 Rent Lease & Ejectment ☐ 240 Torts to Land ☐ 245 Tort Product Liability ☐ 290 All Other Real Property	CIVIL RIGHTS ☒ 440 Other Civil Rights ☐ 441 Voting ☐ 442 Employment ☐ 443 Housing/Accommodations ☐ 445 Amer. w/Disabilities - Employment ☐ 446 Amer. w/Disabilities - Other ☐ 448 Education	PRISONER PETITIONS Habeas Corpus: ☐ 463 Alien Detainee ☐ 510 Motions to Vacate Sentence ☐ 530 General ☐ 535 Death Penalty Other: ☐ 540 Mandamus & Other ☐ 550 Civil Rights ☐ 555 Prison Condition ☐ 560 Civil Detainee - Conditions of Confinement			

V. ORIGIN (Place an "X" in One Box Only)

- ☒ 1 Original Proceeding
- ☐ 2 Removed from State Court
- ☐ 3 Remanded from Appellate Court
- ☐ 4 Reinstated or Reopened
- ☐ 5 Transferred from Another District (specify)
- ☐ 6 Multidistrict Litigation

VI. CAUSE OF ACTION

Cite the U.S. Civil Statute under which you are filing (Do not cite jurisdictional statutes unless diversity):
42 USC 1981, 1983 and 1988

Brief description of cause:

Action for Damages for Deprivation of Rights, Excessive Force, False Arrest, Violation of Equal Protecting, etc.

VII. REQUESTED IN COMPLAINT:

☐ CHECK IF THIS IS A CLASS ACTION UNDER RULE 23, F.R.Cv.P.

DEMAND \$

CHECK YES only if demanded in complaint:

JURY DEMAND: ☒ Yes ☐ No**VIII. RELATED CASE(S) IF ANY**

(See instructions):

JUDGE

DOCKET NUMBER

DATE

12/14/2015

SIGNATURE OF ATTORNEY OF RECORD

Benjamin Zeman

FOR OFFICE USE ONLY

RECEIPT # _____ AMOUNT _____ APPLYING IFP _____ JUDGE _____ MAG. JUDGE _____

CERTIFICATION OF ARBITRATION ELIGIBILITY

Local Arbitration Rule 83.10 provides that with certain exceptions, actions seeking money damages only in an amount not in excess of \$150,000, exclusive of interest and costs, are eligible for compulsory arbitration. The amount of damages is presumed to be below the threshold amount unless a certification to the contrary is filed.

I, Benjamin Zeman, counsel for Stephanie Dorceant, et al., do hereby certify that the above captioned civil action is ineligible for compulsory arbitration for the following reason(s):

- ☒ monetary damages sought are in excess of \$150,000, exclusive of interest and costs,
- ☐ the complaint seeks injunctive relief,
- ☐ the matter is otherwise ineligible for the following reason

DISCLOSURE STATEMENT - FEDERAL RULES CIVIL PROCEDURE 7.1

Identify any parent corporation and any publicly held corporation that owns 10% or more of its stocks:

RELATED CASE STATEMENT (Section VIII on the Front of this Form)

Please list all cases that are arguably related pursuant to Division of Business Rule 50.3.1 in Section VIII on the front of this form. Rule 50.3.1 (a) provides that "A civil case is "related" to another civil case for purposes of this guideline when, because of the similarity of facts and legal issues or because the cases arise from the same transactions or events, a substantial saving of judicial resources is likely to result from assigning both cases to the same judge and magistrate judge." Rule 50.3.1 (b) provides that "A civil case shall not be deemed "related" to another civil case merely because the civil case: (A) involves identical legal issues, or (B) involves the same parties." Rule 50.3.1 (c) further provides that "Presumptively, and subject to the power of a judge to determine otherwise pursuant to paragraph (d), civil cases shall not be deemed to be "related" unless both cases are still pending before the court."

NY-E DIVISION OF BUSINESS RULE 50.1(d)(2)

- 1.) Is the civil action being filed in the Eastern District removed from a New York State Court located in Nassau or Suffolk County? No
- 2.) If you answered "no" above:
- a) Did the events or omissions giving rise to the claim or claims, or a substantial part thereof, occur in Nassau or Suffolk County? No
- b) Did the events or omissions giving rise to the claim or claims, or a substantial part thereof, occur in the Eastern District? Yes

If your answer to question 2 (b) is "No," does the defendant (or a majority of the defendants, if there is more than one) reside in Nassau or Suffolk County, or, in an interpleader action, does the claimant (or a majority of the claimants, if there is more than one) reside in Nassau or Suffolk County?

(Note: A corporation shall be considered a resident of the County in which it has the most significant contacts).

BAR ADMISSION

I am currently admitted in the Eastern District of New York and currently a member in good standing of the bar of this court.

☒ Yes ☐ No

Are you currently the subject of any disciplinary action (s) in this or any other state or federal court?

☐ Yes (If yes, please explain) ☒ No

I certify the accuracy of all information provided above.

Signature: Benjamin Zeman

AO 440 (Rev. 06/12) Summons in a Civil Action

UNITED STATES DISTRICT COURT

for the

Eastern District of New York

Stephanie Dorceant and Nandi Allman

Plaintiff(s)

V.

City of New York

Defendant(s)

Civil Action No. 15-cv-7103

SUMMONS IN A CIVIL ACTION

To: *(Defendant's name and address)*

City of New York
New York City Law Department
100 Church Street
New York, NY 10007

A lawsuit has been filed against you.

Within 21 days after service of this summons on you (not counting the day you received it) — or 60 days if you are the United States or a United States agency, or an officer or employee of the United States described in Fed. R. Civ. P. 12 (a)(2) or (3) — you must serve on the plaintiff an answer to the attached complaint or a motion under Rule 12 of the Federal Rules of Civil Procedure. The answer or motion must be served on the plaintiff or plaintiff's attorney, whose name and address are:

Moore Zeman Womble, LLP
66 Willoughby Street, 2nd Floor
Brooklyn, NY 11201

If you fail to respond, judgment by default will be entered against you for the relief demanded in the complaint. You also must file your answer or motion with the court.

DOUGLAS C. PALMER
CLERK OF COURT

Date: 12/14/2015

Signature of Clerk or Deputy Clerk

Civil Action No. 15-cv-7103

PROOF OF SERVICE*(This section should not be filed with the court unless required by Fed. R. Civ. P. 4 (l))*

This summons for *(name of individual and title, if any)* City of New York
 was received by me on *(date)* 12/14/2015 .

☐ I personally served the summons on the individual at *(place)* _____
 _____ on *(date)* _____ ; or

☐ I left the summons at the individual's residence or usual place of abode with *(name)* _____
 _____ , a person of suitable age and discretion who resides there,
 on *(date)* _____ , and mailed a copy to the individual's last known address; or

☐ I served the summons on *(name of individual)* _____ , who is
 designated by law to accept service of process on behalf of *(name of organization)* _____
 _____ on *(date)* _____ ; or

☐ I returned the summons unexecuted because _____ ; or

☐ Other *(specify)*: _____

My fees are \$ _____ for travel and \$ _____ for services, for a total of \$ 0.00 .

I declare under penalty of perjury that this information is true.

Date: _____

Server's signature

Printed name and title

Server's address

Additional information regarding attempted service, etc:

Signature of Clerk or Deputy Clerk

Civil Action No. 15-cv-7103

PROOF OF SERVICE

(This section should not be filed with the court unless required by Fed. R. Civ. P. 4 (l))

This summons for *(name of individual and title, if any)* Police Officer Salvator Aquino
was received by me on *(date)* 12/14/2015 .

☐ I personally served the summons on the individual at *(place)* _____
_____ on *(date)* _____ ; or

☐ I left the summons at the individual's residence or usual place of abode with *(name)* _____
_____, a person of suitable age and discretion who resides there,
on *(date)* _____ , and mailed a copy to the individual's last known address; or

☐ I served the summons on *(name of individual)* _____ , who is
designated by law to accept service of process on behalf of *(name of organization)* _____
_____ on *(date)* _____ ; or

☐ I returned the summons unexecuted because _____ ; or

☐ Other *(specify)*: _____

My fees are \$ _____ for travel and \$ _____ for services, for a total of \$ 0.00 .

I declare under penalty of perjury that this information is true.

Date: _____

Server's signature

Printed name and title

Server's address

Additional information regarding attempted service, etc: